

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANTWI NKANSAH,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER JOHN ZORRILLA, Shield No. 22991, POLICE OFFICER LAGUNA, SERGEANT FRIAS, LIEUTENANT NEIL ZUBER, and POLICE OFFICERS JOHN DOES # 1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 19, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer John Zorrilla, Shield No. 22991 PSA 7, 737 Melrose Ave, Bronx, NY
10455
Police Officer Laguna, PSA 7, 737 Melrose Ave, Bronx, NY 10455
Sergeant Frias, PSA 7, 737 Melrose Ave, Bronx, NY 10455
Lieutenant Neil Zubar, PSA 7, 737 Melrose Ave, Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ANTWI NKANSAH,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
ZORRILLA, Shield No. 22991, POLICE OFFICER
LAGUNA, SERGEANT FRIAS, LIEUTENANT NEIL
ZUBER, and POLICE OFFICERS JOHN DOES # 1-4
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff ANTWI NKANSAH, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money and punitive damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 21, 2015, at approximately 11:30 p.m., plaintiff Antwi Nkansah, while lawfully present in front of 495 East 158th Street, Bronx, New York, was assaulted, battered, and subjected to excessive force by defendant Police Officer Zorrilla when defendant PO Zorrilla unlawfully maced plaintiff without provocation or legal justification. Thereafter, on November 22, 2015, at approximately 11:00 p.m., inside of PSA 7 located at 737 Melrose Ave, Bronx, NY 10455, plaintiff was falsely arrested and falsely imprisoned by the defendant police officers. Further, plaintiff's First Amendment rights were violated when he tried to file a complaint against defendant Police Officer Zorrilla at the PSA 7 precinct for the excessive force used against him by PO Zorrilla on November 21, 2015, and in retaliation for attempting to file said complaint against PO Zorrilla, plaintiff was unlawfully arrested without legal justification or probable cause. Plaintiff was deprived of his constitutional and common law rights when the individual defendants falsely arrested, assaulted, battered, and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ANTWI NKANSAH is a resident of the state of New York.

3. POLICE JOHN ZORRILLA, Shield No. 22991, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE JOHN ZORRILLA, Shield No. 22991, is and was at all times relevant herein, assigned to PSA 7 Precinct.

5. POLICE JOHN ZORRILLA, Shield No. 22991 is being sued in his individual and official capacity.

6. POLICE OFFICER LAGUNA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER LAGUNA, is and was at all times relevant herein, assigned to PSA 7 Precinct.

8. POLICE OFFICER LAGUNA, is being sued in his individual and official capacity.

9. SERGEANT FRIAS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT FRIAS, is and was at all times relevant herein, assigned to PSA 7 Precinct.

11. SERGEANT FRIAS, is being sued in his individual and official capacity.

12. LIEUTENANT NEIL ZUBER, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. LIEUTENANT NEIL ZUBER, is and was at all times relevant herein, assigned to PSA 7 Precinct.

14. LIEUTENANT NEIL ZUBER, is being sued in his individual and official capacity.

15. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-4 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

20. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50 on March 18, 2016.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On November 21, 2015, at approximately 11:00 p.m., plaintiff and his cousin, Sandy Owusu went to a family gathering to celebrate a baby's christening at 495 East 158th Street, Bronx, New York.

25. Plaintiff and his cousin went inside to the christening party and they were there for about 30 minutes when plaintiff's cousin received a telephone call from a friend, Richard Duncan.

26. Mr. Duncan told plaintiff's cousin that he needed plaintiff's cousin to come downstairs because he was in front of the building in a cab and he was a few dollars short on the cab fare, and needed plaintiff's cousin to lend him the money to pay for the cab.

27. Plaintiff and plaintiff's cousin went downstairs and found Mr. Duncan's cab right in front of 495 East 158th Street.

28. Plaintiff's cousin was talking to the cab driver to find out how much he owed the cab driver when all of a sudden, defendant police officer Zorrilla and defendant police officer Laguna pulled alongside the cab in an unmarked police car.

29. Defendant police officer Zorrilla and defendant police officer Laguna began acting belligerent, and defendant police officer Zorrilla yelled at the cab driver to move his cab.

30. Defendant police officer Zorrilla then exited his vehicle and approached Mr. Owusu, and Mr. Owusu explained to defendant Zorrilla that he was just about to pay the cab driver.

31. Defendant police officer Zorrilla started cursing at Mr. Owusu and called him "a fucking African."

32. Plaintiff then asked defendant police officer Zorrilla why he cursed at his cousin and plaintiff explained to defendant Zorrilla that his cousin was just trying to pay the cab fare.

33. Then, without provocation or legal justification, defendant police officer Zorrilla took out his mace, and without warning sprayed plaintiff in the face and eyes with mace causing plaintiff to suffer serious physical injuries, including but not limited to, pain and burning in his eyes and a scratched cornea.

34. Notably, after defendant police officer Zorrilla unlawfully sprayed mace in plaintiff's face, defendant Zorrilla never filed a complaint report against plaintiff indicating that plaintiff had committed any crime on November 21, 2015.

35. Immediately after plaintiff was unlawfully sprayed in his face with mace, plaintiff managed to go to a bodega to get water and attempted to flush his eyes out to stop the burning and stinging.

36. Thereafter, on November 21, 2015, plaintiff and his cousin went to the 42nd precinct with the intention of making a complaint against defendant police officer Zorrilla.

37. When plaintiff and his cousin arrived at the 42nd precinct, plaintiff spoke to the desk sergeant and explained what had just happened to him, and told the desk sergeant that he wanted to make a formal complaint against defendant police officer Zorrilla.

38. The desk sergeant at the 42nd precinct informed plaintiff that defendant police officer Zorrilla was not assigned to his precinct, however the desk sergeant helped plaintiff figure out that defendant police officer Zorrilla was assigned to PSA 7 and told plaintiff he would have to go to PSA 7 to file the complaint against defendant police officer Zorrilla.

39. After plaintiff and plaintiff's cousin went to the 42nd precinct, they decided that since it was late at night, they would go home and then go PSA 7 to file a complaint the next day against defendant police officer Zorrilla.

40. Plaintiff went home and went to sleep, however when he woke up the next day his eyes were all red and they were burning, tearing, and itching and also the vision in plaintiff's right eye was blurry.

41. As such, on November 22, 2015, plaintiff went to Bronx Lebanon Hospital to receive medical treatment for his eyes.

42. At Bronx Lebanon Hospital, plaintiff stated that he had been maced by an NYPD officer the night before and his eyes were burning, tearing, and blurry.

43. Plaintiff was seen by medical personnel at Bronx Lebanon Hospital and he was diagnosed amongst other things with a scratched cornea in his right eye.

44. Plaintiff was prescribed antibiotic eye drops and was discharged from the hospital on November 22, 2015.

45. Thereafter, on November 22, 2015, at approximately 10:00 p.m., plaintiff and plaintiff's cousin went to PSA 7 located at 737 Melrose Ave, Bronx, NY 10455 with the intention of filing a formal complaint against defendant police officer Zorrilla for his unlawful assault and battery of plaintiff on November 21, 2015.

46. Upon arrival at PSA 7, defendant Police Officer Zorrilla was present at PSA 7, and upon learning that plaintiff wanted to make a formal complaint against him, defendant police officer Zorrilla intentionally, unlawfully, and maliciously retaliated against plaintiff and unlawfully handcuffed and arrested plaintiff without legal justification or probable cause.

47. Specifically, defendant police officer Zorrilla unlawfully arrested plaintiff in an attempt to cover up his unlawful macing of plaintiff on November 21, 2015.

48. Defendant police officer Zorrilla fabricated allegations of Disorderly Conduct and OGA against plaintiff that allegedly occurred on November 21, 2015.

49. Defendant police officer Zorrilla knew that if he did not cover up his unlawful use of mace the night before by fabricating an arrest, then he would likely get disciplined because he knew he had no explanation or legal justification for macing plaintiff.

50. Plaintiff was then fingerprinted, photographed, and put into holding cell.

51. Defendant Lieutenant Zuber unlawfully approved plaintiff's arrest without legal justification or probable cause.

52. On November 23, 2015, while in the holding cell at PSA 7, plaintiff began feeling sick and began vomiting.

53. As a result, plaintiff was transported to Lincoln Hospital for medical treatment.

54. While at Lincoln hospital, plaintiff complained of pain to his eyes and being nauseous from the exposure to the mace from the night before.

55. On November 23, 2015, at approximately 6:00 a.m., plaintiff was discharged from Lincoln Hospital and taken straight to Bronx Central Booking.

56. While plaintiff was held at Bronx Central Booking, defendant police officer Zorrilla falsely stated to the Bronx District Attorney's Office that plaintiff had committed the crimes of Disorderly Conduct and Obstructing Governmental Administration on November 21, 2015.

57. Notably, after reviewing defendant police officer Zorrilla's fabricated allegations against plaintiff the Bronx District Attorney's Office declined to prosecute plaintiff and all charges against plaintiff were dismissed.

58. Specifically, as per the Bronx District Attorney's Office declined to prosecute paperwork, the Bronx DA stated that they "are declining to prosecute the instant matter due to the fact that defendant's conduct as articulated by the arresting officer does NOT rise to the level of criminal activity that would support the filing of criminal charges."

59. On November 23, 2015, after approximately 24 hours in police custody, plaintiff was released from custody.

60. After being released from custody, plaintiff filed a formal complaint with CCRB and IAB regarding the unlawful use of force used against him by defendant police officer Zorrilla and regarding the unlawful arrest by defendant police officer Zorrilla and Lieutenant Zuber.

61. Notably, after conducting an investigation, CCRB substantiated plaintiff's complaints against defendant police officers Zorrilla and Lieutenant Zuber and both defendant police officers were disciplined for their unlawful actions against plaintiff.

62. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable false arrest, false imprisonment, assault, battery, and use of excessive force against plaintiff.

63. The false arrest, false imprisonment, assault, battery and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma, including a scratched cornea to plaintiff's eye.

64. Plaintiff missed 4 days of work as a result of the unlawful arrest and use of excessive force by the defendant police officers.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be falsely arrested, falsely imprisoned without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

83. Defendants lacked probable cause to search plaintiff.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The use of excessive force by defendant police officer Zorrilla by unlawfully macing plaintiff in his face and eyes is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

90. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

91. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SIXTH CAUSE OF ACTION

Assault

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

94. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Battery

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

100. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligence

104. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Defendants owed a duty of care to plaintiff.

106. To the extent defendants claim that plaintiff's physical injuries were not caused by the defendants during the course of plaintiff's arrest, and instead were accidentally caused by defendants either before or after they arrested plaintiff then defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior.

107. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

108. All of the foregoing occurred without any fault or provocation by plaintiff.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

111. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

112. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Antwi Nkansah. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

114. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

115. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

118. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

121. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

First Amendment Right To Be Free From Retaliation for Petitioning Government Officials (Against Defendant Police Officer John Zorrilla)

122. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 121 with the same force and effect as if more fully set forth at length herein.

123. Reporting misconduct by police officers to government officials is conduct that is protected by the Petition Clause of the First Amendment.

124. Filing a complaint with the NYPD Internal Affairs Bureau or with the NYC Civilian Complaint Review Board and/or publically alleging that a police officer or multiple police officers engaged in police misconduct and/or an abuse of their authority and/or public corruption and/or violated an individual's Constitutional Rights under the United States Constitution constitutes reporting misconduct by police officers to government officials and is therefore protected by the Petition Clause of the First Amendment.

125. The false arrest and false imprisonment, by defendant Zorrilla constituted unlawful retaliation by defendant Zorrilla for plaintiff engaging in activity protected by the First Amendment to the United States Constitution.

126. Defendant Zorrilla acted with wanton, callous and reckless disregard of Plaintiff's First Amendment rights in confronting and seizing plaintiff at PSA 7, arresting and attempting to prosecute plaintiff in retaliation for exercise of Plaintiff's constitutionally protected rights to file a complaint alleging that defendant Zorrilla used excessive force against plaintiff on November 21, 2015 when defendant police officer Zorrilla unlawfully maced him.

127. As a direct and proximate result of such acts, defendant Zorrilla deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION**Failure to Intervene**

129. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 128 with the same force and effect as if more fully set forth at length herein.

130. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

131. Defendants failed to intervene to prevent the unlawful conduct described herein.

132. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

133. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

134. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

135. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

136. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

137. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Antwi Nkansah demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 19, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 19, 2017

/s/
STUART E. JACOBS